

25CHCV02439 25CHCV02439

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Case Number: 25CHCV02439 Hearing Date: August 4, 2026 Dept: F49

Dept. F49

Date: 8/4/26

Case Name: Maria Guadalupe Luna vs. Six Flags

Entertainment Corporation; Magic Mountain LLC; and Does 1-50

Case No. 25CHCV02439

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 4, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO FORM INTERROGATORIES; REQUEST FOR SANCTIONS

Los Angeles Superior

Court Case No. 25CHCV02439

Motion filed: 3/10/26

MOVING PARTY: Defendant Magic Mountain LLC

RESPONDING PARTY: Plaintiff Maria Guadalupe Luna

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Plaintiff to serve further responses to Defendant Magic Mountain LLC's Form Interrogatories, Set One, Nos. 2.3, 2.5, 2.6, 6.4, 6.5, 6.7, 10.1, 11.1, 12.1, and 12.4; and awarding sanctions in the amount of \$3,210.00.

TENTATIVE RULING: The motion is DENIED. The request for sanctions is DENIED.

BACKGROUND

This action arises from injuries allegedly sustained by Plaintiff Maria Guadalupe Luna ("Plaintiff") when she fell from a defective seating wall at Defendants' theme park. On July 10, 2025, Plaintiff filed the Complaint against Defendants Six Flags Entertainment Corporation ("Six Flags"), Magic Mountain LLC ("Magic Mountain") (collectively, "Defendants"), and Does 1 through 50, alleging negligence and premises liability.

On October 31, 2025, Defendants filed their joint Answer to the Complaint.

On March 10, 2026, Magic Mountain filed the instant motion to compel Plaintiff's further responses to Magic Mountain's Form Interrogatories, Set One (the "Motion").

At the Case Management Conference on April 8, 2026, the parties were ordered to meet and confer regarding outstanding discovery. Pursuant to that order, on June 29, 2026, the parties filed a Joint Status Conference Report.

On July 22, 2026, Plaintiff filed an Opposition.

On July 28, 2026, Magic Mountain filed a Reply.

ANALYSIS

“On

receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply: (1) An answer to a particular interrogatory is evasive or incomplete. (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate. (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc., § 2030.300, subd. (a).)

A.

Procedural Requirements

(1)

Timeliness of Motion

A party must bring a motion to compel further responses to interrogatories within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2030.300, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.)

The proof of service attached to Plaintiff’s responses to Magic Mountain’s Form Interrogatories, Set One indicates that the responses were served via email on January 20, 2026. (Byrne Decl., Exh. B.) The deadline to move to compel further responses was accordingly March 10, 2026. (Code Civ. Proc., §§ 1010.6, 2030.300.) The Motion, filed on March 10, 2026, was therefore timely.

(2)

Meet and Confer

A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration must “state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

“The level of effort at informal resolution which satisfies the ‘reasonable and good faith attempt’ standard depends upon the circumstances.” (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.) Relevant factors a court may consider in determining whether a reasonable and good faith attempt was made include “[t]he history of the litigation, the nature of the interaction with counsel, the nature of the issues, the prospects for success and other similar factors.” (Ibid.)

Defendants’ counsel attests that he requested an extension of time to meet and confer regarding Plaintiff’s responses to Magic Mountain’s Form Interrogatories, Set One on March 4, 2026. (Byrne Decl., ¶ 12.) Plaintiff’s counsel indicated that she would need to see the substance of the issues raised before agreeing to any mutual extensions. (Id., Exh. C.) Defendants’ counsel then sent a meet and confer letter to Plaintiff’s counsel on March 9, 2026 requesting further responses by the end of the day. (Id., ¶ 5, Exh. D.) He also followed up the same day via email and telephone to offer extensions of time to meet and confer but received no response. (Id., ¶ 6.)

As a general matter, the foregoing efforts do not satisfy the in-person or telephonic meet-and-confer requirement of the Discovery Act. Moreover, Defendants’ counsel did not initiate substantive meet and confer efforts until the day before the motion deadline, precluding any meaningful opportunity for both parties to engage in the process before Magic Mountain filed the Motion. Nevertheless, given that Plaintiff’s counsel did not initially agree to any extensions, it was not unreasonable for Magic Mountain to file the Motion on the date of the deadline to preserve the right to further responses. The Court accordingly does not find the deficiency in meet-and-confer efforts to warrant outright denial of the Motion.

(3)

Separate Statement

“Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement. The motions that require a separate statement include a motion ... (2) To compel further responses to interrogatories.” (Cal. Rules of Court, Rule 3.1345, subd. (a).) The separate statement must “provide[] all information necessary to understand ... all the responses ... that are at issue” and “be full and complete so that no person is required to review any other

document in order to determine the full request and the full response.” (Id., Rule 3.1345, subd. (c).)

Magic Mountain has filed a separate statement concurrently with the Motion, identifying each response at issue, stating the text of both the interrogatory and response, and providing reasons for compelling further response. The Court thus finds that Magic Mountain has complied with the separate statement requirement.

B.

Motion to Compel Further Responses to Special Interrogatories, Set One

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (Code Civ. Proc., § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ. Proc., § 2030.220, subd. (c).)

As a preliminary matter, the Court notes that both parties concede that the supplemental responses served by Plaintiff on April 10, 2026 are code-compliant and resolve the deficiencies identified in the Motion. (Reply, at p. 2; Joint Status Conference Report, at p. 4.) The Motion to compel further responses is accordingly DENIED AS MOOT.

The only remaining issue is sanctions.

C.

Monetary Sanctions

“The court may impose a monetary sanction and order that one engaging in the misuse of the discovery process ... pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030, subd. (a).) Misuse of the discovery

process includes making an evasive response to discovery. (Id., § 2023.010, subd. (f).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

Both Magic Mountain and Plaintiff request monetary sanctions.

Magic Mountain contends that the Motion was necessitated by Plaintiff's deficient responses and failure to grant an extension of time to meet and confer regarding the responses. (Reply, at p. 2.) Plaintiff argues that Magic Mountain's failure to reasonably meet and confer and to provide a reasonable opportunity to cure any deficiencies shows that the Motion was brought in bad faith to harass Plaintiff. (Opp'n, at pp. 5-6.)

As discussed above, the Court finds that it was reasonable for Magic Mountain to bring the Motion before expiration of the deadline. However, it was also reasonable for Plaintiff's counsel to request the basis for any claimed deficiencies in the responses to evaluate the merits before agreeing to extend the meet and confer timeline. Identification of the issues only the day before the deadline did not provide ample time for response. The Court accordingly finds that neither party acted without substantial justification.

The requests for sanctions are therefore DENIED.

CONCLUSION

Defendant Magic Mountain LLC's motion to compel Plaintiff's further responses to its Form Interrogatories, Set One is DENIED AS MOOT.

Defendant Magic Mountain LLC's request for monetary sanctions is DENIED.

Plaintiff's

request for monetary sanctions is DENIED.

Moving party to give notice.